

*Public Health* (2020) 9 Cal.5<sup>th</sup> 710, 725-726.) Defendant fails to otherwise support its assertion that the arbitration neither tolls the statute of limitations nor affects the accrual of a cause of action.

Defendant's demurrer to each of the causes of action of the SAC on the ground that they fail to state facts sufficient to constitute a cause of action because they are time-barred is **OVERRULED**. Defendant fails to demonstrate Plaintiff's causes of action accrued before the May 24, 2024 arbitration award date or that the doctrine of equitable estoppel applies to the arbitration proceedings.

Plaintiff shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 6

**Case Name:** *Kumar v. County of Santa Clara, et al.*

**Case No.:** 25CV474000

Defendant County of Santa Clara, erroneously sued as Office of Supportive Housing ("County"), demurs to each of the causes of action of the first amended complaint ("FAC") of plaintiff Ravnir Kumar ("Plaintiff") on the ground that they fail to state facts sufficient to constitute a cause of action.

As County notes, Government Code section 911.2 requires that a claim related to a plaintiff's injury to his or her person or personal property be filed "not later than six months after the accrual of the cause of action." (Gov. Code § 911.2.) The FAC alleges a number of acts that Plaintiff contends could be a basis for a cause of action—an August 2022 promise by County's

reentry resource center staff member Brian Evans that was not fulfilled; a January 2023 ridiculing of plaintiff by an employee of a separate, non-demurring defendant; a May 2023 statement by County staff member Girley Taylor who stated to Plaintiff that his ESUP application was missing requirements; the October 2024 wrongful termination of Plaintiff's MediCal benefits; the January 2025 hanging up on Plaintiff by an employee of a separate, non-demurring defendant; the February 12, 2025 breach of a promise by an employee of a separate, non-demurring defendant; and the March 27, 2025 statement by County employee Steve Preminger who stated that he was "done responding." However, the FAC also alleges that Plaintiff did not file his claim until November 4, 2025—more than six months after the last alleged act. Further, Plaintiff filed the FAC on November 17, 2025; however, the FAC fails to allege that the claim was acted upon or deemed rejected prior to the filing of the FAC. Judicially noticeable facts indicate that on December 4, 2025, County sent Plaintiff a Notice of return Without Action letter because of Plaintiff's failure to present the claim "within six months of the event or occurrence as required by law." Government Code section 945.4 states that "no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented... until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board." (Gov. Code § 945.4.) "Failure to allege compliance renders the complaint in such an action subject to general demurrer." (*Briggs v. Lawrence* (1991) 230 Cal.App.3d 605, 613 (Sixth District case).) Accordingly, County's demurrer to the first and second causes of action on the ground that the fail to allege compliance with the Government Claims Act is SUSTAINED on this basis.

Further, as County argues, Plaintiff cannot allege a cause of action for fraud against County as Government Code section 818.8 plainly states that "[a] public entity is not liable for an injury caused by misrepresentation by an employee of the public entity, whether or not such misrepresentation be negligent or intentional." Accordingly, County's demurrer to the first cause of action for fraud is SUSTAINED without leave to amend on this basis.

Nor may Plaintiff allege a cause of action for common law negligence against County. (See *Hilts v. County of Solano* (1968) 265 Cal.App.2d 161, 170-171 (stating that “the liability of County could only be statutory and could not rest on a theory of common law negligence... [t]he cases do make plain, however, that a verdict against a county must be overturned if it is erroneously based on a negligence theory”); see also Gov. Code § 815, subd. (a) (stating that “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person”); see also *Ellerbee v. County of Los Angeles* (2010) 187 Cal.App.4<sup>th</sup> 1206, 1214, 1216 (stating that “[t]he County is correct that its liability, if any, cannot arise out of the common law... [section 815, subdivision (a)] abolished all common law or judicially declared forms of liability... the trial court erred when it denied the County’s motion for judgment on the pleadings and allowed the action to proceed to trial on a theory of common law negligence”).) Accordingly, County’s demurrer to the second cause of action for common law negligence is SUSTAINED without leave to amend on this basis.

As to the third cause of action for violation of the Americans with Disabilities Act, “statutory causes of action must be pleaded with particularity.” (*Covenant Care, Inc. v. Super. Ct. (Inclan)* (2004) 32 Cal.4<sup>th</sup> 771, 790.) Here, the FAC fails to identify Plaintiff’s alleged disability and does not allege any facts supporting the denial of or exclusion from services, programs or activities due to a disability. (See *Duvall v. County of Kitsap* (9<sup>th</sup> Cir. 2001) 260 F.3d 1124, 1135 (stating that “a plaintiff must show: (1) he is a “qualified individual with a disability”; (2) he was either excluded from participation in or denied the benefits of a public entity’s services, programs, or activities, or was otherwise discriminated against by the public entity; and (3) such exclusion, denial of benefits, or discrimination was by reason of his disability”).) Moreover, the cause of action is premised on “written communications for ESUP applications” which occurred in May 2023 when Taylor claimed that Plaintiff’s ESUP application was “missing requirements but refused to specify in writing, stonewalling Plaintiff’s employment efforts.” However, as County notes, this statement regarding missing requirements

occurred more than two years after the FAC was filed. Other alleged acts regarding denial of housing accommodations are alleged to be done by separate, non-demurring defendants and thus cannot be a basis for a cause of action against County. County's demurrer to the third cause of action is SUSTAINED with 10 days leave to amend.

As to the fourth cause of action for violation of 42 U.S.C. § 1983, again, "statutory causes of action must be pleaded with particularity." (*Covenant Care, Inc. v. Super. Ct. (Inclan)* (2004) 32 Cal.4<sup>th</sup> 771, 790.) Here, the FAC fails to allege facts supporting and identifying both a constitutional violation and a policy by County that caused Plaintiff's harm. (See *Johnson v. City of Seattle* (9<sup>th</sup> Cir. 2007) 474 F.3d 634, 638 (stating that "municipalities are only liable under Section 1983 if there is, at minimum, an underlying constitutional tort"); see also *AE v. County of Tulare* (9<sup>th</sup> Cir. 2012) 666 F.3d 631, 636 (stating that "[p]laintiffs must establish that 'the local government had a deliberate policy, custom, or practice that was the moving force behind the constitutional violation [they] suffered'"); see also *Mehta v. City of Sunnyvale* (N.D.Cal. 2024) 721 F. Supp. 3d 1041, 1049 (stating that "[a]n isolated incident of unconstitutional conduct by an officer is insufficient to establish a policy or custom to render a municipality liable").) Further, the fourth cause of action fails to allege facts suggesting that County actually intended to harm Plaintiff, thereby constituting "deliberate indifference." (See *Connick v. Thompson* (2011) 563 U.S. 51, 62 (stating that "'[d]eliberate indifference' is a stringent standard of fault, requiring proof that a municipal actor disregarded a known or obvious consequence of his action... [m]unicipal liability under § 1983 attaches where--and only where-- a deliberate choice to follow a course of action is made from among various alternatives by [the relevant] officials"); see also *Murguia v. Langdon* (9<sup>th</sup> Cir. 2023) 61 F.4th 1096, 1111 (stating that "[f]or a defendant to act with deliberate indifference, he must 'recognize the unreasonable risk and actually intend to expose the plaintiff to such risks without regard to the consequences to the plaintiff'... [t]his standard is higher than gross negligence and requires a culpable mental state").) In opposition to the demurrer, Plaintiff fails to address County's arguments regarding the identification of a constitutional violation, how that right was violated, the identification of a

County policy, how the policy caused Plaintiff's injuries, or deliberate indifference. "By failing to argue the contrary, plaintiffs concede this issue." (*DuPont Merck Pharmaceutical Co. v. Super. Ct. (Newman)* (2000) 78 Cal.App.4<sup>th</sup> 562, 566; see also *Herzberg v. County of Plumas* (2005) 133 Cal.App.4<sup>th</sup> 1, 20 (stating that as "Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs...we deem plaintiffs to have abandoned the issue"); see also *Arnold v. Dow Chemical Co.* (2001) 91 Cal.App.4<sup>th</sup> 698, 729 (stating that "[b]ecause appellants have not briefed that issue on appeal, the issue is abandoned"); see also *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4<sup>th</sup> 507, 529 (stating that "failure to address the threshold question of intent effectively concedes that issue"); see also *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4<sup>th</sup> 1409, 1424 (stating that "appellants impliedly concede by failing to address the statute").) Plaintiff also fails to assert how he can possibly amend the cause of action so as to state a viable claim. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (stating that "Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading").) County's demurrer to the fourth cause of action is SUSTAINED without leave to amend.

County shall prepare and submit a proposed final order consistent with this tentative ruling.